BROAD BASED SKILLS TEST OF THE SCHOOL FOR LEGAL PRACTICE

2018 (2)

The Statement of Facts consists of 4 (four) pages including this page

GENERAL AND SPECIFIC INSTRUCTIONS

i. Candidates are not required to nor are they allowed to make-up their own facts.
ii. Students will receive the statement of facts before the actual assessment date. You are required to carefully study the facts and thereafter to retain the statement of facts and have it in your possession at the assessment. You will not receive the statement of facts on the day of the assessment! You may make notes on the statement of facts.
iii. For the purposes of this assessment you will receive a question paper with various questions based on the statement of facts. You will be required to answer all the questions therein.
iv. Students may consult any material received from LSSA LEAD, together with any notes made by the student therein, during the assessment. Students are, however, encouraged to plan carefully when deciding on what material to use and to consider working space limitations during the assessment.
v. The issues in the statement of facts are complex and numerous. Your preparation should take into account that you will have to allocate and use your time and efforts logically. Deal with only relevant matters in your answers.
vi. The actual assessment will comprise of 100 marks and the time allocation will be 4 hours and 30 minutes, which includes 15 minutes reading time.
vii. The facts including the parties' names in this statement are fictitious.

STATEMENT OF FACTS & CHRONOLOGICAL LIST OF EVENTS

You are employed as an attorney by Grant & Radebe Incorporated with offices at 12 Nelson Mandela Drive, Pretoria. You are instructed to act on behalf of the client as described below. Your specific instructions are to study the contents of the client's file carefully and to ensure that the client's instructions and your mandate are diligently executed. A colleague at Grant & Radebe has previously consulted with the clients in the past. You immediately peruse the file and discover the following:

Client: Mr. Tsepo Mavuso ('Mavuso')

Employer: Station FM

Position: Radio Presenter

Station FM is owned by Music Broadcasting (Pty) Limited, and located at Music House, Cambridge Office Park No. 25, 4th Street, Vincent Estate, Johannesburg, 2198. Mavuso has been employed by Station FM for 3 years and 11 months. He is married to Jane and their two children, Pamela and Ruan, are currently studying at the University of Cape Town. Mavuso and his family reside at 23 Main Street, Sandton, Johannesburg.

Mavuso initially instructed Grant & Radebe Incorporated to defend an action brought against him wherein the Plaintiff, a sole proprietor, Mr Peter Smith trading as “The Wedding Planner”, alleged that Mavuso and his wife owed him the amount of R95 451. 99. The simple summons stated that the cause of action was based on goods sold and delivered at the special instance and request of the Mavuso’ s. Mavuso received the summons and stated that he paid the amount in full by way of electronic transfer into the bank account of Smith. He, however, forgot to include the reference number as per the statement received from The Wedding Planner when he made payment. He believes that Smith probably just did not record the payment as a result. His instructed Grant & Radebe to address a letter to Smith’s attorneys with a request that they take no further legal action until Mavuso could obtain written payment confirmation from his bank to prove that payment had been made. Smith’s attorneys agreed to hold the summons over for 10 days. However they insisted that confirmation of payment be forwarded to them or that the matter be settled failing which they would request default judgment after expiry of the 10 days. You now notice that more than a month had elapsed since this agreement was reached. You telephonically contact the attorneys acting on behalf of The Wedding Planner. They confirm that default judgment was requested and granted on 29 May 2016 and that a warrant of execution was sent to the sheriff on 30 May 2016.

It seems that the initial matter was overlooked as Mavuso instructed Grant & Radebe on a more urgent legal issue. On 14 May 2016 Mavuso posted the following statement on his personal Facebook account: *"I don’t think people should vote, maybe it would be better to spend your time doing something more productive".* This statement was met with both anger and criticism and approval and support from members of the public on social media. The essence of the criticism was that the statement was of a political nature and that a radio personality should not make such statements, despite his right to freedom of speech. Some people, however, commented that they would not vote in the local government elections as they agreed with Mavuso. One person in particular, a Mrs Joan Osborn of 24/7 FM, an independent radio station owned by New Generation Radio (Pty) Ltd, commented on her radio show called “Let’s Talk” that she considered Mavuso as a “sell-out” and that he is “incompetent”, which is why he made such a statement. She further, after a member of the public phoned the station defending Mavuso, stated that Mavuso should be “sent to Robin Island for a few years” as he does not respect the democratic values of South Africa. New Generation Radio competes with Station FM for advertising clients as they also operate in the area where Station FM is situation. In fact, New Generation Radio, has its offices at Sound Stage, Cambridge Office Park No. 13, 4th Street, Vincent Estate, Johannesburg, 2198, approximately 300 meters from Station FM.

Station FM thereafter distanced themselves from the statement by Mavuso and, without consulting with Mavuso, alleged that his statement was detrimental to their brand. Station FM then proceeded to summarily terminate Mavuso's contract of employment. Mavuso was informed of this decision by way of an email from the human resources manager of Station FM.

Mavuso, however, thereafter stated publically that the post on Facebook was in response to the voting on a popular television programme called "Icons" and that it had no bearing on the local elections. Icons is essentially a talent competition to discover new artists from members of the public. The winning artist is determined by way of electronic votes, which are cast via cell phone text messages. This programme had on the previous day announced that the cost of voting would increase from R1 to R25 per text message. This version of Mavuso is supported by his manager and agent, Mr Richard Solomon's, who was with Mavuso when he posted the statement on Facebook. Mavuso and Solomons were discussing the implications of the price increase on the voting patterns of people watching Icons when Mavuso posted the statement. Mavuso was specifically concerned that the costs involved would negatively influence the chances of competitors from disadvantaged backgrounds.

On 17 May 2016 Mavuso apologised publically for any confusion caused and made it clear that he intended to comment on the cost of voting for Icons and that his post had nothing to do with the local government elections. Station FM, after being informed of the version of Mavuso, made a media statement wherein it stated that Mavuso had shown a lack of insight into the possible consequences of his actions and that they have a policy of zero tolerance for negative social media posts. Station FM confirmed the summary termination of the employment contract of Mavuso.

At this time, Icons released a media statement, in which they confirmed that they are considering their options, including the possibility of claiming damages from Mavuso and Station FM for any loss suffered as a result of the Facebook statement. Several other companies, including Energy (Pty) Ltd and Loud Music (Pty) Ltd also indicated that they would terminate the endorsement contracts they have with Mavuso due to the public uproar. These endorsement contracts are valued at R5 000 000 per year.

Mavuso further, in an interview on a national television programme, stated that he had just purchased a property in Sandton for R14 000 000. He appointed builders to start with renovations to this property. He commented that the "illegal" termination of his employment would leave him "penniless" and unable to pay the bond, costs of building alterations and his children's university fees. He further stated that he would have to sell his collection of paintings

at a loss to cover these expenses. He could apparently sell the collection, at an auction, and he would be able to settle only the university fees immediately and the “rest would have to wait until this issue is finalised”. He confirmed that the termination of his employment contract is embarrassing as the sale may realise as little as R 900 000. Mavuso may thus not be able to pay any other debt as he would need some of the money to survive until he is able to obtain an income again. He is of the opinion that he may need to leave South Africa to work abroad should he struggle to find gainful employment locally. He indicates that a radio station operating in Spain had already contacted him with a tentative offer of employment and that he was considering “accepting this offer and leaving for good”.